



File No.: EXP202403900

RESOLUTION OF RIGHTS PROCEDURE

Having viewed the complaint registered on February 25, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 25, 2024, a complaint was submitted to this Agency by A.A.A. (hereinafter, the complainant) against PREVENFORMACIO, S.L. (hereinafter, the respondent) for not having duly attended to their right of access to their personal data.

The complainant states that since August 8, 2023, they have been requesting the right of access to their data from the respondent without having received a response.

Specifically, they claim to have requested detailed and specific information that includes:

- Contact details of the data controller and, if applicable, the identity and details of the representative, as well as the contact details of the data protection officer.
- An expanded description of the purposes of data processing, the retention periods or criteria, and any automated decision-making, profiles created, and logic applied in the process.
- Information on the legal basis for processing, in the case of legal obligation, public or legitimate interest, and details on the obligation or not to provide the data and the consequences of not doing so.
- Details of the recipients or categories of recipients of their data, as well as the adequacy decisions, guarantees, binding corporate rules, or specific situations applicable.
- Explanation of how to exercise the rights of access, rectification, deletion, portability, and limitation or opposition to processing, including the right to withdraw consent and to lodge a complaint with the Control Authority.
- Detailed information on the source of the data, even if it comes from publicly accessible sources, and the category of data processed.

Along with their submission, they provided the following documentation:

- Email, dated February 8, 2024, requesting access to the aforementioned information, addressed to the addresses info@prevenformat.com, eevid.com and ***EMAIL.2, from the address ***EMAIL.1
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- eEvid delivery confirmation certificate of the email dated August 8, 2023, to the recipient info@prevenformat.com, with the subject "ARCO RIGHTS EXERCISE OF THE RIGHT OF ACCESS," sent from the address ***EMAIL.1
- Screenshot of the contact details of the respondent.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent proceeded to respond, stating the following:

- Regarding whether they received the request to exercise data protection rights, they confirmed that they did, and that the request was received on August 8, 2023, at 18:45h.
- As for whether they have responded to the request to exercise rights, they indicated that they indeed responded after receiving the official notification related to the complaint.
- In relation to the status of the requested data and whether it is blocked, they stated that it was blocked from the date they received the notification regarding the complaint.
- Regarding whether they have made any decision regarding the complaint, they informed that they have decided to modify the response procedure to rights requests, so that in the future, a response will

always be provided to the requester, regardless of whether the request is valid or not.

- Concerning the response given to the complaint after the transfer by the Agency, they indicated that the response has been provided and attached the corresponding accreditation.

- Regarding the causes that led to the incident that originated the complaint, they explained that the request to exercise rights was received during the holiday period. Upon reviewing the request, it was found that the requester did not appear in the records as a customer. Due to the workload and lack of human resources, it was assumed that the email had been sent by mistake to an incorrect recipient.

- Finally, regarding the measures taken to prevent similar incidents from occurring, they indicated that the complaint has prompted a modification of the procedure to include verification not only of whether the complainant is listed as a customer but also in the list of personal data processed by the company as a data processor. Additionally, it has been decided to prioritize responses to this type of request, both for direct interested parties and for data controllers. They anticipate that these measures will be implemented throughout the third quarter of the year and that periodic checks will be conducted to verify their effectiveness.

The respondent has provided a thread of emails where the response issued on March 20, 2024, is recorded, indicating the categories of data they hold, without specifying the actual data of the complainant, also stating that "(...) we act as a data processor under contract with the data controller ***EMPRESA.1, for the control of

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assistance to training courses," that the data has been provided by the data controller and that it has not been provided to third parties.

The responding party has attached a copy of the email sent to the complaining party on March 20, 2024, in which they inform them of the categories of data they hold, without specifying the actual data of the complaining party, additionally stating that "(...) we act as the data processing company under contract with the data controller ***COMPANY.1, for the control of attendance to training courses," that the data has been provided by the data controller and that it has not been provided to third parties.

THIRD: After examining the response to the transfer and information request made by this Agency, it was considered that there were certain aspects that needed clarification. Therefore, a period of five working days was granted for them to credibly substantiate the response provided to the complaining party after the transfer, since the complaint was filed for not having received the regulatory response: The responding party has again attached a copy of the email sent to the complaining party on March 20, 2024, in which they inform them of the categories of data they hold, without specifying the actual data of the complaining party, additionally stating that "(...) we act as the data processing company under contract with the data controller ***COMPANY.1, for the control of attendance to training courses," that the data has been provided by the data controller and that it has not been provided to third parties.

FOURTH: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the claims of the complaining party, given that the right of access to personal data has been provided incompletely, as it only informs about the categories of processed data, but has not provided the data concerning the complaining party. Consequently, on April 29, 2024, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the responding party a hearing procedure, so that within a period of ten working days they could present any allegations they deemed appropriate.

The responding party has provided an email thread in which the email dated March 20, 2024, addressed to the complaining party is again included.

Additionally, the email thread includes two other responses addressed to the complaining party, dated May 13 and 16, 2024, in which they specify the complaining party's data related to their name, surname, and ID number, as well as stating that the source of the data is the data controller and

reiterating that they act as the data processor for the company ***COMPANY.1, for the registration of the worker for training, for the control of attendance to training courses, and for the creation of the corresponding certificates for the training if applicable.

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In particular, in the email sent to the complaining party on May 16, 2024, they respond to the request of the complainant in the following terms:

“Good morning A.A.A. In further information regarding your request to exercise the right of access, we communicate the following.

Processed data:

- Name: A.A.A.
- Surname: A.A.A.
- ID Number: ***NIF.1

Purpose: We act as the data processing company under contract with the data controller ***COMPANY.1, for the registration of the worker for training, for the control of attendance to training courses, and for the creation of the corresponding certificates for the training if applicable.

In this case, your data was necessary for a training talk on occupational risk prevention that the company ***COMPANY.1 commissioned us to conduct for newly hired personnel.

Source of the data: Data provided by the data controller, ***COMPANY.1

Communications made: The processed data has not been provided to third parties.”

FIFTH: After examining the document submitted by the responding party, it is transferred to the complaining party, so that within a period of ten working days they may formulate any allegations they consider appropriate, with no response having been submitted to this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it.

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In its Article 57, among other things, it establishes the obligation to enforce the Regulation and promote awareness among the controllers and processors regarding the obligations that pertain to them, as well as to address the complaints submitted by an interested party and investigate, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases

where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the due response to the complainant.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on April 29, 2024, for the purposes provided for in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission to processing was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

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The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may

request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the

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control authority, the information available about the origin of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data subject to processing shall not adversely affect the rights and freedoms of others.

V

Conclusion

The Guidelines 01/2022 on the rights of data subjects — Right of access, of the European Data Protection Board, version 2.0, adopted on March 28, 2023, state in section 19 the following:

“Access to personal data is the second component of the right of access under Article 15, paragraph 1, and constitutes the core of this right. It refers to the notion of personal data as defined in Article 4, paragraph 1, of the GDPR. Apart from basic personal data, such as name and address, an unlimited variety of data may be included in this definition, as long as it falls within the material scope of the GDPR, especially regarding how it is processed (Article 2 of the GDPR). Access to personal data means access to the actual personal data, not just a general description of the data or a mere reference to the categories of personal data processed by the data controller. If no limits or restrictions apply, data subjects have the right to access all data processed concerning them, or parts of the data, depending on the scope of the request (see sec. 2.3.1). The obligation to facilitate access to the data does not depend on the type or source of such data. It applies in its entirety even in cases where the requesting person initially provided the data to the data controller, as its purpose is to inform the data subject about the actual processing of such data by the data controller. (...)”

Article 28 of the GDPR, Processor, establishes that:

“3. The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

a)

(..)

e) shall assist the controller, taking into account the nature of the processing, through appropriate technical and organizational measures, insofar as possible, so that the controller can comply with its obligation to respond to requests concerning the exercise of the rights of data subjects established in Chapter III;

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(...)

h) shall make available to the controller all the information necessary to demonstrate compliance with the obligations laid down in this Article, as well as to enable and contribute to audits, including inspections, by the controller or another auditor appointed by the controller. (...)"

The Guidelines 07/2020 of the European Data Protection Board on the concepts of "data controller" and "data processor" in the GDPR, adopted on July 7, 2021, state that

"12. The concepts of 'data controller' and 'data processor' are functional concepts: their purpose is to assign responsibilities based on the actual role of each party. This implies that the legal status of 'data controller' or 'data processor' of the participants should be established primarily based on their specific activities in a given situation and not based on the formal designation of a participant as a 'data controller' or 'data processor' (e.g., in a contract). This implies that the assignment of the role of controller or processor should normally derive from an analysis of the facts or circumstances of the case and, consequently, is not negotiable.

(...)

SECTION II: CONSEQUENCES OF THE ASSIGNMENT OF DIFFERENT ROLES

1 RELATIONSHIP BETWEEN THE DATA CONTROLLER AND THE DATA PROCESSOR

93. A new characteristic of the GDPR is the provisions that impose obligations directly on data processors. For example, the data processor must ensure that persons authorized to process personal data have committed to respecting confidentiality (Article 28, paragraph 3), must maintain a record of all categories of processing activities (Article 30, paragraph 2), and must implement appropriate technical and organizational measures (Article 32). It must also designate a data protection officer when certain conditions are met (Article 37) and has the duty to notify the data controller without undue delay of any personal data breaches of which it becomes aware (Article 33, paragraph 2).

Furthermore, the rules on transfers of data to third countries (Chapter V) apply not only to data controllers but also to processors. In this regard, the EDPB considers that Article 28, paragraph 3, of the GDPR, despite prescribing the inclusion of specific content in the necessary contract between the controller and the processor, imposes direct obligations on processors, including the duty to assist the data controller in ensuring compliance with the obligations.

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1.3.5 The processor shall assist the controller so that the latter can fulfill its obligation to respond to requests aimed at exercising the rights of the data subjects [Article 28, paragraph 3, letter e), of the GDPR]

130. Although it is the responsibility of the controller to ensure that requests from data subjects are answered, the contract must include the obligation of assistance from the processor "through appropriate technical and organizational measures, where possible." The type of assistance may vary significantly "considering the nature of the processing" and depending on the type of activity entrusted to the processor. Details regarding the assistance that the processor must provide should be included in the contract or in an annex to it.

131. While the assistance may simply consist of promptly communicating any request received or allowing the controller to extract and manage the relevant personal data directly, in certain circumstances, more specific and technical duties will be assigned to the processor, especially when it is in a position to extract and manage the personal data.

(...)."

When establishing the provisions of the contract regarding the handling of the rights of the data subjects, to define the type of assistance that the data processor can provide to the controller, it may be agreed that the practical management of individual requests is carried out by the data processor. In the case analyzed here, it has been established that the claimant requested access to their personal data from the respondent, and that the latter initially provided the categories of data it holds, without specifying them, and indicated that it is the data processor for the company ***EMPRESA.1. Subsequently, after the admission of the complaint filed, the respondent informed the claimant of their actual personal data, the purpose, the origin of the same, as well as the communications made, without the claimant having made any statement against the handling of the right of access provided. Consequently, it is appropriate to uphold, for formal reasons, the complaint filed as the right was addressed extemporaneously, without requiring the respondent to carry out additional actions in order to issue a new certification regarding the handling of the right.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by A.A.A. against PREVENFORMACIO, S.L. However, it is not appropriate to issue a new certification by the respondent, as the response was issued extemporaneously, without requiring the performance of additional actions by the controller.

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SECOND: TO NOTIFY this resolution to A.A.A. and to PREVENFORMACIO, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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